

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF BAZHENOV AND OTHERS v. RUSSIA

(Applications nos. 10149/20 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

23 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Bazhenov and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by Memorial Human Rights Centre, a non-governmental organisation practicing in Moscow.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the disproportionate measures taken against them as participants of public assemblies, namely the manifestations for fair elections to the Mosgorduma. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23, 10 April 2018; *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, related to examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

IV. REMAINING COMPLAINTS

14. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], no. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court (as indicted in the appended table) admissible and *finds* that there is no need to deal separately with the remaining complaints of the applicants under Article 6 of the Convention;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the interferences with the applicants' freedom of assembly;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 23 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lətif Hüseynov President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	10149/20 13/02/2020	**Denis Anatolyevich BAZHENOV** 1985	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention on 27/07/2019 in excess of 3 hours for the purpose of drawing up a record of administrative arrest; Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative offence proceedings – Final decision: Moscow City Court 08/10/2019	4,000
2.	10632/20 17/02/2020	**Anastasiya Antonovna YAKUBOVSKAYA** 1998	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention on 27/07/2019 in excess of 3 hours for the purpose of drawing up a record of administrative arrest; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 04/09/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	10639/20 17/02/2020	**Yakov Vadimovich MANSHIN** 1997	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest, escorting to the police station and detention on 27/07/2019 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 30/10/2019	4,000
4.	10703/20 17/02/2020	**Valeriy Yuryevich KISLOV** 1992	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 12/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest, escorting to the police station and detention on 27/07/2019 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 12/09/2019	4,000
5.	10820/20 22/02/2020	**Yevgeniya Valeryevna YEFREMOVA** 1972	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/08/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 28/08/2019; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – arrest, escorting to the police office and detention on 27/07/2019 for the	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
							purpose of drawing up a record of administrative offence	
6.	10922/20 07/02/2020	**Anton Aleksandrovich LIFANOV** 1982	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up an offence record; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 20/09/2019	4,000
7.	10925/20 07/02/2020	**Denis Anatolyevich YEGOROV** 1989	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful detention on 03/08/2019 exceeded 8 hours; detained solely for the purpose of drawing up an offence record; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 30/09/2019	4,000
8.	11037/20 07/02/2020	**Vitaliy Vladimirovich CHERNYKH** 1982	Manifestation for fair elections to Mosgorduma Moscow	Article 20.2 § 5 of CAO	fine of RUB 19,000	Moscow City Court 28/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27-28 July 2019 for the sole purpose of drawing up an offence record;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
			27/07/2019				Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 28/10/2019	
9.	11039/20 07/02/2020	**Aleksey Aleksandrovich ILCHENKO** 1987	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up an arrest record; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 26/09/2019	4,000
10.	11078/20 22/02/2020	**Aleksandr Yuryevich NEDOSEKIN** 1984	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	120 hours' compulsory work	Moscow City Court 22/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up an arrest record; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 22/08/2019	4,000
11.	11082/20 22/02/2020	**Sergey Yevgenyevich PIKHOVKIN** 1983	Manifestation for fair elections to Mosgorduma	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
			Moscow 27/07/2019				27/07/2019 for the sole purpose of drawing up an arrest record; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 26/08/2019	
12.	11088/20 22/02/2020	**Igor Gennadyevich MUSHENKO** 1991	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest, escorting to the police station and detention on 27/07/2019 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 22/08/2019	4,000
13.	11177/20 22/02/2020	**Roman Nikolayevich IZOTOV** 1972	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention in excess of 3 hours on 27/07/2019 for the purpose of drawing up a record of administrative arrest; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 26/09/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
14.	11184/20 22/02/2020	**Leonid Alekseyevich NOVITSKIY** 1986	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention in excess of 3 hours for the purpose of drawing up a record of administrative arrest on 27/07/2019; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 26/08/2019	4,000
15.	11311/20 15/02/2020	**Vsevolod Yuryevich SEKRETEV** 1995	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6 of CAO	fine of RUB 10,000	Moscow City Court 16/08/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 16/08/2019; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest and escorting to the police station on 27/07/2019	4,000
16.	11732/20 20/02/2020	**Vladimir Aleksandrovich MEDVEDEV** 1992	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 20/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting on 27/07/2019 to the police office for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours, Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision:	4,000

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							Moscow City Court 20/08/2019	
17.	11946/20 20/02/2020	**Sergey Konstantinovich MOROZOV** 1999	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 20/08/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 20/08/2019; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours	4,000
18.	11977/20 20/02/2020	**Roman Petrovich FANASKOV** 1989	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 04/09/2019; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours	4,000
19.	12046/20 20/02/2020	**Pavel Platonovich KROKHONYATKIN** 1987	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 06/09/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 06/09/2019;	4,000

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							Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours.	
20.	14008/20 28/02/2020	**Vadim Anatolyevich KAGLIK** 1983	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 2 of CAO	fine of RUB 10,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings: Final decision: Moscow City Court 30/08/2019	4,000

[1] Plus any tax that may be chargeable to the applicants.